

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK-----X
DIANE C. DESOUSA
and THOMAS E. DESOUSA,
Plaintiffs,-against-
RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,
Defendants.

Index No: 600371/2021

REPLY AFFIDAVIT IN
SUPPORT OF SUMMARY
JUDGMENT-----X
State of New York >
> ss.:
County of Nassau >**RICHARD A. CALVAGNO II**, being duly sworn, deposes and says that:

1. I am a Defendant in the above action, fully familiar with all the facts set forth herein. Following exhaustive discovery and depositions, I commenced the underlying motion for, among other things, summary judgment. I submit this affidavit in reply to Plaintiff's opposition thereto.

2. With all due respect, enough is enough. How long am I to be targeted and harassed for living my life, peaceably and openly, as a proud gay man?!? This action seeking to adjudge me and my lifestyle a "nuisance," along with its anger and hate, have to come to an end.

3. I will not overburden this Court with repetitive recitations of our respective testimonies or complaints. In the interests of judicial economy and efficiency, I refer this Court's attention to my attorney's reply affirmation and hereby attest to the truth of all factual allegations made therein, noting as their source both myself and the proof (or should I say lack of proof) offered following comprehensive and complete discovery (that I understand the Plaintiff has nonetheless violated, by offering additional affidavits and letters that he failed to provide in response to duly issued discovery demands. Why am I am not surprised and again, when will this ever end?!?)

4. As is clear, the Plaintiff (at least Mr. DeSousa) is filled with hate, anger and rage for me and my lifestyle. He has labelled me a faggot, homo and in this underlying action a “nuisance” when in fact it is this action that is the nuisance.

5. I will not belabor the point but rather note the subtler proof of Plaintiff’s hatred including even:

- A. his attorney’s reference to Mr. DeSousa as “Mr. DeSousa” but his denigrating description of me with no identity of similar title or respect, repeatedly referring to me as “Calvagno”;
- B. his deliberate decision to depose Westbury Jeep employees with whom I work on a daily basis, to allegedly support his claim that I had the exhaust on my car “modified.” The testimony of course, failed to prove that fact, but nonetheless served Plaintiff’s ulterior motives to embarrass me in front of my peers (deliberately and maliciously forcing them to retain counsel for a deposition that failed to prove the car had been modified and that tried to prove the workers incompetent) and thus compromise my employment. Thank goodness, they understood, the malice and malevolent motives of Plaintiff’s abusive conduct; and
- C. By way of illustration but certainly not limitation, Mr. DeSousa’s: petitioning and division of our neighbors in a pattern meant to malign and alienate me; constant communications with police and other officials who Plaintiff repeatedly called to my door and NONE of whom issued a violation for excessive noise or uncontained trash or debris; and his ongoing harassment of me with meritless complaints that my manufacture delivered (and unmodified car) is too loud (nonetheless noting that I am away from my home ALL DAY, every weekday.)

6. Plaintiff’s uncontrollable rage reminds me of the Buddhist saying that “Hate is like drinking poison and hoping the other person dies.” It is time for Mr. DeSousa to stop drinking the posion, as I am trying to do as well, and to live the lives we have each been blessed to receive. It is time to once and for all, put an end to the HATE.

7. Hate should have no place on our streets and no place in this Court.

WHEREFORE, your Defendant prays for an order granting to me and my co-Defendant, the relief requested in my annexed OSC in its entirety, together with such other and further relief as to this Court may seem just and proper.


RICHARD A. CALVAGNO II

Duly sworn to before me this
25th day of June, 2024.


NOTARY PUBLIC

DEBORA SHAMOILIA
Notary Public, State of New York
No. 02SH6341724
Qualified in nASSAU County
Commission Expires May 9, 2028